



# CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court  
Criminal Justice Center, 14250 Court Street, Clearwater

**FORM CR-07**  
FILED BY THE PARTIES  
REV. 08/2026

## IN THE COUNTY / CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT IN AND FOR CLEARWATER COUNTY

### PLEA AGREEMENT AND WAIVER OF RIGHTS

*Negotiated disposition - defendant must complete the waiver personally*

|                                                                                                                                              |                                                                                                                                                                                                                                                                                                 |
|----------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>THE STATE OF FLORIDA</b><br><br><b>THE STATE OF FLORIDA</b><br><br>VS. <b>DEFENDANT</b><br><br><input type="text"/><br>Full name of party | <b>CASE NUMBER (UCN)</b><br><input type="text"/><br>Format: 26-CF-000123 (YY - TYPE - NUMBER)<br><b>DIVISION</b> <input type="text"/> <b>JUDGE / HEARING OFFICER</b> <input type="text"/><br><small>CF felony   MM misdem.   CT crim. traffic   TR traffic   CC civil   SC small claims</small> |
|----------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

#### HOW TO USE THIS FORM

This form ends a case without a trial. The defendant must read and initial every waiver line - a judge will reject the plea if the waivers are blank. The judge is never bound by the recommended sentence unless Part V says the plea is binding.

#### PART I - PARTIES

|                                                         |                                                |                                            |
|---------------------------------------------------------|------------------------------------------------|--------------------------------------------|
| <b>DEFENDANT FULL NAME</b><br><input type="text"/>      | <b>USERNAME</b><br><input type="text"/>        | <b>CASE NUMBER</b><br><input type="text"/> |
| <b>ASSISTANT STATE ATTORNEY</b><br><input type="text"/> | <b>DEFENSE COUNSEL</b><br><input type="text"/> | <b>BAR NO.</b><br><input type="text"/>     |

#### PART II - COUNTS AND PLEAS

*Plea types: GUILTY / NO CONTEST / DISMISSED*

| COUNT                | ORIGINAL CHARGE      | PLEA TO (CHARGE)     | PLEA TYPE            | DISPOSITION          |
|----------------------|----------------------|----------------------|----------------------|----------------------|
| <input type="text"/> | <input type="text"/> | <input type="text"/> | <input type="text"/> | <input type="text"/> |
| <input type="text"/> | <input type="text"/> | <input type="text"/> | <input type="text"/> | <input type="text"/> |
| <input type="text"/> | <input type="text"/> | <input type="text"/> | <input type="text"/> | <input type="text"/> |
| <input type="text"/> | <input type="text"/> | <input type="text"/> | <input type="text"/> | <input type="text"/> |
| <input type="text"/> | <input type="text"/> | <input type="text"/> | <input type="text"/> | <input type="text"/> |

#### PART III - NATURE OF THE PLEA

|                                                                                                                                                                                |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> <b>GUILTY</b><br>I admit that I committed the offense(s) listed above.                                                                                |
| <input type="checkbox"/> <b>NO CONTEST (NOLO CONTENDERE)</b><br>I do not admit guilt but I do not contest the charge. The Court may treat this as a conviction for sentencing. |
| <input type="checkbox"/> <b>OPEN PLEA TO THE COURT</b><br>There is no agreement with the State. I accept whatever sentence the Court imposes within the lawful maximum.        |

#### PART IV - WAIVER OF RIGHTS

By entering this plea I give up the following rights. I check each box to show that I understand it and that I am giving it up freely.

**RIGHTS WAIVED - CHECK EACH TO CONFIRM YOU UNDERSTAND**

- ☐ My right to a trial by jury
- ☐ My right to make the State prove guilt beyond a reasonable doubt
- ☐ My right to see and cross-examine the witnesses against me
- ☐ My right to subpoena witnesses in my defense
- ☐ My right to remain silent and not testify
- ☐ My right to appeal, except as to an illegal sentence
- ☐ My right to file pretrial motions, including a motion to suppress
- ☐ My right to be presumed innocent

**DEFENDANT CERTIFICATION**

- ☐ I am not under the influence of drugs, alcohol, or medication right now
- ☐ No one has threatened or forced me to enter this plea
- ☐ No promises have been made to me other than what is written in this document
- ☐ I have had enough time to talk with my attorney about this plea
- ☐ I am satisfied with the advice and representation of my attorney
- ☐ I understand the maximum penalty for each charge
- ☐ I understand this may affect my employment, licensing, or immigration status
- ☐ I am entering this plea freely and voluntarily

**PART V - AGREED SENTENCE RECOMMENDATION**

|                      |                         |                      |                          |
|----------------------|-------------------------|----------------------|--------------------------|
| JAIL / PRISON TIME   | CREDIT FOR TIME SERVED  | PROBATION TERM       | TOTAL FINES AND COSTS    |
| <input type="text"/> | <input type="text"/>    | <input type="text"/> | <input type="text"/>     |
| RESTITUTION AMOUNT   | COMMUNITY SERVICE HOURS | LICENSE IMPACT       | PLEA IS BINDING ON COURT |
| <input type="text"/> | <input type="text"/>    | <input type="text"/> | <input type="text"/>     |

**ADDITIONAL TERMS OF THE AGREEMENT**

DIVERSION, TREATMENT, NO-CONTACT ORDERS, COOPERATION TERMS

**PART VI - SIGNATURES**

|                                                                     |                                                                   |
|---------------------------------------------------------------------|-------------------------------------------------------------------|
| <input type="text"/>                                                | <input type="text"/>                                              |
| <b>DEFENDANT</b><br>I have read and understood this entire document | <b>DEFENSE COUNSEL</b><br>I have explained this plea to my client |
| PRINTED NAME                                                        | PRINTED NAME                                                      |
| <input type="text"/>                                                | <input type="text"/>                                              |
| DATE                                                                | DATE                                                              |
| <input type="text"/>                                                | <input type="text"/>                                              |

ASSISTANT STATE ATTORNEY

The State agrees to these terms

PRINTED NAME

DATE

JUDGE

Plea accepted / rejected - see below

PRINTED NAME

DATE

PART VII - RULING OF THE COURT

PLEA ACCEPTED

The Court finds the plea is knowing, voluntary, and supported by a factual basis.

PLEA ACCEPTED - SENTENCE DEFERRED

Sentencing set for the date entered below.

PLEA REJECTED

The Court rejects the agreement. The defendant may withdraw the plea.

SENTENCING DATE

MM/DD/YY

TIME

HH:MM

COURTROOM

PSI ORDERED